

The Claremont City Council held a Special Meeting on Wednesday, February 1, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O'Hearne
Ward II Councilor James Contois
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

AGENDA CHANGES

Mayor Girard stated there will be an agenda change.
The Council will go into a non-meeting with City Attorney Tanguay.

COUNCILOR HEARING

The meeting reconvened from the non-meeting at 7:26 PM.
Mayor Girard turned the meeting over to Attorney Tanguay.

Attorney Tanguay introduced himself, and noted that tonight the City is considering the possible removal of sitting City Councilor, as a result the Council has decided that it needs to conduct a limited evidentiary hearing, for the purposes of hearing more evidence as to the issues of the matter. The Council will be asking questions to those with vested interest, or knowledge of the matter pending before the Council.

Attorney Tanguay stated there could have been an understanding or representation for public comment, but is advising the Council not to do this, because the Council is stressed with a very important matter; the possible removal of an elected official, which is one of the most important things a Council could consider. Attorney Tanguay stated it takes a substantial amount of evidence, and violation in order for this removal to occur, this is why the advice is to forgo public comment.

Mayor Girard asked Assistant Mayor Matteau for a briefing of the Ad-Hoc Committee.

Assistant Mayor Matteau explained the Ad-Hoc Committee consisted of herself as Chair, Councilor O'Hearne, and Councilor Batchelder. The Ad-Hoc Committee met three times to gather information involved for the allegations.

Assistant Mayor Matteau noted there were two things the Ad-Hoc Committee was looking into. The incident at Ford that took place on October 19th which resulted in a notice of trespass, and a follow up conversation with the Police Chief regarding that notice of trespass. Assistant Mayor Matteau stated the Police Chief and Deputy Chief gave extensive statements, related to potential undue influence.

The second incident was the Historic District vote, the inaccurate information provided to Council and Councilor Contois was given an opportunity to give an explanation.

Mayor Girard asked Councilor Contois if he would be willing to recuse himself; Contois agreed Councilor Contois sat with the public.

Councilor Koloski asked if all Ad-Hoc committee statements were sworn-to. Assistant Mayor Matteau stated Mr. Gomes and witnesses' statement were the only statements that were sworn.

Councilor Limoges asked if it was common practice for the Deputy Chief to reach out and ask for a removal of trespass notices. Chief Wilmot has never had this happen before but stated he would have done nothing different if anyone else called and made the same request.

Councilor O'Hearne asked to hear the recording of the call being placed to Chief Wilmot. The recording was played out loud.

Councilor O'Hearne asked Chief Wilmot if it is common practice to take a call from an average person and have the Deputy Chief take the request, and asked if this would typically go to a lower rank officer.

Chief Wilmot, noted this was the first time he was confronted with this here, and Deputy Chief Grasso has a relationship with Mr. Gomes because he is working on the Fleet, knowing the Deputy Chief has a lot of contact with Mr. Gomes, Chief Wilmot thought Deputy Chief could communicate with him.

Councilor O'Hearne questioned why the Police Statements from Chief and Deputy Chief were not sworn.

Chief Wilmot responded he provided a statement, and thought he would be sworn into for testimony, Chief Wilmot noted the statement holds the same power as a sworn statement he would give to a court.

Councilor Koloski questioned when the Ad-Hoc Committee asked where Councilor Contois' location was on Mr. Gomes property and was asked to point on a map, Councilor Koloski asked if Councilor Contois pointed to a location. Assistant Mayor Matteau stated he refused to answer.

Councilor Koloski asked Councilor Contois if he was under the impression, he was on private or public property.

Councilor Contois stated the question is not relevant, and the question is whether or not he had undue influence.

Councilor O'Hearne asked Councilor Contois why he reached out to the Chief of Police instead of the police officer who issued the no trespass order. Contois stated sometimes it is hard to get in touch with officers, and noted he usually starts at the top and not the bottom.

Councilor Batchelder asked Councilor Contois if he thought it was a valuable use of the Police Chief's time to ask these questions about the no trespassing order as a regular citizen. Councilor Contois stated yes, as he is a citizen and expects this and noted he has been a citizen for a lot longer than a Council member.

Contois asked to approach bench and give hand out.

Councilor O'Hearne asked Councilor Contois if he withheld the information to the Council what the HDC voted on while knowing the information?

Councilor Contois stated he was asked that night if the HDC had made a decision. Councilor Contois referred to the hand out that states after issuance of certificate of appropriateness. Contois mentioned when he came to Council there was no certificate of appropriateness, so a decision had not been made.

Councilor Limoges also asked Councilor Contois if there was a vote at the HDC meeting to demolish those buildings. Councilor Contois responded, yes. Councilor Limoges stated he didn't understand why Councilor Contois wouldn't report that. Councilor Contois then stated mostly because I don't trust you guys.

Councilor Koloski shared concern for giving false information, as the role of a Councilor is to report at this Council Level committee. Councilor Koloski doesn't not support the removal as a sitting Councilor, but asked for the removal of Councilor Contois from the HDC.

A motion was made by Councilor Stone and seconded by Councilor Limoges to remove sitting Councilor Contois for improper influence, provision of Charter, Article III section 29 non-interference.

Roll call:

O'Hearne- no

Batchelder – no
Stone - yes
Matteau – no
Koloski- no
Limoges - yes
Mooshian - no
Girard - no
Motion failed 6-2

A motion was made by Councilor Koloski and seconded by Councilor O’Hearne to remove sitting councilor Jim Contois for dereliction of duty for the failure to inform the Council of relative information he possessed while having a Council level discussion.

Roll call:
O’Hearne- yes
Batchelder - no
Stone - yes
Matteau – no
Koloski- yes
Limoges - yes
Mooshian - no
Girard - no
Motion failed 4-4

Assistant Mayor Matteau asked to discuss the Historic District Committee Council representative seat at the next Council meeting.

ADJOURNMENT

At 8:08 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to adjourn

Voice Vote:
O’Hearne- yes
Batchelder - yes
Stone - yes
Matteau – yes
Koloski- yes
Limoges - yes
Mooshian - yes
Girard – yes
Motion carried 8-0

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council

DRAFT